

Opinion of the Court

Objections to the Constitution Answered, reprinted in 3 Annals of America 249 (1976).

The States thus retain “a residuary and inviolable sovereignty.” The Federalist No. 39, at 245. They are not relegated to the role of mere provinces or political corporations, but retain the dignity, though not the full authority, of sovereignty.

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The generation that designed and adopted our federal system considered immunity from private suits central to sovereign dignity. When the Constitution was ratified, it was well established in English law that the Crown could not be sued without consent in its own courts. See *Chisholm v. Georgia*, 2 Dall. 419, 437–446 (1793) (Iredell, J., dissenting) (surveying English practice); cf. *Nevada v. Hall*, 440 U. S. 410, 414 (1979) (“The immunity of a truly independent sovereign from suit in its own courts has been enjoyed as a matter of absolute right for centuries. Only the sovereign’s own consent could qualify the absolute character of that immunity”). In reciting the prerogatives of the Crown, Blackstone—whose works constituted the preeminent authority on English law for the founding generation—underscored the close and necessary relationship understood to exist between sovereignty and immunity from suit:

“And, first, the law ascribes to the king the attribute of sovereignty, or pre-eminence. . . . Hence it is, that no suit or action can be brought against the king, even in civil matters, because no court can have jurisdiction over him. For all jurisdiction implies superiority of power” 1 W. Blackstone, Commentaries on the Laws of England 234–235 (1765).

Although the American people had rejected other aspects of English political theory, the doctrine that a sovereign could not be sued without its consent was universal in the